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THE INDIAN

Business Registration & Compliance Playbook

Choose the right structure. File SPICe+ yourself. Survive the first 180 days. Run the annual calendar without a single penalty.

WHAT IS INSIDE

- Proprietorship, OPC, LLP or private limited — decided with real tax and compliance numbers
- The 12-document set, the name rules and the registered-office proof that actually clears ROC scrutiny
- SPICe+ Part A and Part B, block by block, with the current fee sheet
- The 180-day post-incorporation clock, including the INC-20A deadline most founders miss
- The annual calendar with the 2026 changes: three-year DIR-3 KYC and the new small-company limits
- Six worksheets you can fill in today

Built from the Ministry of Corporate Affairs (SPICe+ FAQs, INC-20A instruction kit, penalties schedule), PIB releases, Startup India, the Income Tax Department and the GST Council.

Read this first

Six facts in this book contradict most of what is published about Indian company registration. Start here, because they change what you should do this week.

The fact	Why it matters
Government incorporation fee is nil	SPICe+ charges no filing fee where authorised capital is up to Rs 15,00,000. You pay stamp duty, PAN and TAN charges, and your DSC — not a Rs 7,000 fee.
Director KYC is now once every three years	From 31 March 2026 the annual DIR-3 KYC is gone. Directors who are already compliant next file by 30 June 2028. Articles still telling you to file by 30 September are a year out of date.
A small company is now much bigger	Since 1 December 2025 a private company with paid-up capital up to Rs 10 crore and turnover up to Rs 100 crore qualifies as a small company and files the shorter MGT-7A. The old Rs 4 crore / Rs 40 crore line is dead.
INC-20A is the deadline that hurts	Within 180 days of incorporation you must declare that subscribers have paid for their shares. Miss it and the company owes Rs 50,000, each officer Rs 1,000 a day up to Rs 1 lakh, and the company cannot legally trade.
Filing fees are waived right now for FY 2025-26	MCA General Circular 05/2026 (24 October 2026) allows AOC-4 up to 31 December 2026 and MGT-7 or MGT-7A up to 31 January 2027 without additional fees. It does not extend the AGM deadline.
A private limited company is audited every year	No turnover threshold, no exemption. An LLP with turnover under Rs 40 lakh and contribution under Rs 25 lakh needs no audit at all.

What this playbook is, and what it is not

It is a working manual for an Indian founder, freelancer or small business owner who is deciding a structure, filing it, or cleaning up after filing it. Every fee, form number, deadline and penalty in these pages was checked against an official source in November 2026, and the source list is at the back.

It is not legal or tax advice for your specific facts, and it does not replace a practising chartered accountant or company secretary where your situation is unusual — a foreign shareholder, a regulated business, prior defaults, or a family settlement. Where a professional is genuinely needed, this book says so instead of pretending otherwise.

How to use it

If you have not registered anything yet, read Parts 1 and 2 before you spend a rupee. If you are filing this month, keep Part 3 open beside the MCA portal. If your certificate of incorporation already arrived, go straight to Part 4 and put the dates in your calendar — that part has saved more founders from penalties than any other.

Contents

Ten parts, forty-one numbered sections, six worksheets.

Part	Sections	What it settles
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2. Before you file	6–10	The digital signature, the name, the registered office, the capital clause and the twelve documents that decide whether your application clears first time.
3. Filing SPICe+	11–15	Part A, Part B block by block, the linked registrations, the real fee sheet, the nine rejection causes and what should arrive in your inbox.
4. The first 180 days	16–21	Bank account, first board meeting, auditor, share certificates, INC-20A and the other registrations — on a dated calendar.
5. The annual calendar	22–26	AGM, AOC-4, MGT-7A, DIR-3 KYC, audit and tax dates, the 2026 fee waivers, and the true cost of missing each one.
6. The LLP route	27–29	FiLLiP, the agreement deadline, the two annual forms, the late-fee multiplier and closing an LLP properly.
7. Tax and the benefits you can claim	30–33	Corporate regimes, director pay versus dividend, GST setup, and DPIIT recognition with the 80-IAC holiday.
8. The twelve costliest mistakes	34–35	Each with the rupee figure attached, so you can see which ones are worth preventing.
9. Getting out	36–37	Dormant status, strike-off, voluntary closure, and what a dead company really costs.
10. Worksheets	38–41	Structure scorecard, document checklist, 180-day plan, annual calendar, fee estimator, name pre-check.

A note on numbers

Amounts are in rupees and use the Indian convention — lakh and crore. Government fees and statutory penalties are exact. Market rates for digital signature certificates, professional fees and compliance retainers are ranges, because they differ by city and firm; they are labelled as ranges wherever they appear. Stamp duty differs by state and is set by each state's own schedule, so this book gives you the structure of the charge and the published rates for the largest states, and tells you where the final figure is computed.

PART ONE

Choosing the structure

Five structures account for almost every small business in India. They differ in three ways that matter: who pays if things go wrong, how the profit is taxed, and what the paperwork costs every year. Get this decision right and the rest of the book is mechanics.

1. The five structures, in plain English

A sole proprietorship is not a legal entity. You and the business are the same person, which is why it is free to start and why your house is on the line if the business is sued. It becomes visible to the system through the registrations it takes — GST if turnover crosses the threshold, Udyam for MSME benefits, a Shops and Establishments licence where there is a premises.

A partnership firm is two or more people carrying on business under a deed. It is registered with the Registrar of Firms of the state, which is optional in most states but worth doing, and it still carries unlimited liability. An LLP keeps the partnership feel but caps each partner's exposure at their agreed contribution, and it is registered centrally with the Ministry of Corporate Affairs.

A One Person Company is a private limited company with a single member. It has limited liability, a nominee who steps in on death or incapacity, and no mandatory conversion trigger since April 2021 — an OPC can stay an OPC at any size. What it cannot do is take an investor or issue ESOPs, because it cannot have a second shareholder.

A private limited company is a separate legal person owned by shareholders and run by directors. It can raise equity, issue ESOPs, add shareholders, and it survives its founders. In exchange it must be audited every year, hold board meetings, and file with the Registrar of Companies whether or not it traded.

	Proprietorship	Partnership	LLP	OPC	Private limited
Separate legal person	No	No	Yes	Yes	Yes
Liability	Unlimited, personal	Unlimited, joint	Limited to contribution	Limited to shares	Limited to shares
Minimum people	1	2 partners	2 designated partners	1 member, 1 director	2 directors, 2 shareholders
Can take equity investment	No	No	No	No	Yes
Audit every year	No	No	Only above Rs 40 lakh turnover or Rs 25 lakh contribution	Yes	Yes
Annual filings	ITR, GST returns	ITR, GST returns	Form 11 and Form 8	AOC-4, MGT-7A, ITR-6	AOC-4, MGT-7 or 7A, ITR-6, ADT-1
Where it is registered	Nowhere central	Registrar of Firms (state)	MCA	MCA	MCA

A Section 8 company is the sixth option, for charitable objects: profits cannot be distributed, and its compliance is heavier than a private limited company's. It is out of scope here except for one warning — incorporation under Section 8 does not by itself give you income-tax exemption. The 12A and 80G approvals are separate applications.

2. What limited liability actually buys you

The phrase is abstract until you put a number on it. Suppose your business owes Rs 6,00,000 to a supplier, Rs 3,00,000 on a bank overdraft, and a customer has a genuine claim of Rs 4,00,000. The business has Rs 1,20,000 in the bank.

As a proprietorship, the shortfall of roughly Rs 11.8 lakh is yours. The supplier can sue you personally, attach your salary, and in enforcement proceedings your flat can be sold. Your personal assets were never ring-fenced, because legally there was no separate business to ring-fence.

As a private limited company, the loss stops at the company. The company's assets are Rs 1.2 lakh, and the shareholders lose what they paid for their shares and nothing more, provided they have not given personal guarantees. Two caveats worth stating plainly, because they are where the protection leaks:

- **Personal guarantees.** Banks lending to a young company almost always ask the directors to guarantee the loan personally. Where you have signed one, that debt is yours regardless of the structure.
- **Statutory dues and fraud.** Directors can be personally pursued for unpaid TDS and GST in defined situations, and limited liability never shields fraud or wrongful trading. Structure protects you from commercial risk, not from your own conduct.

That is the whole case for incorporation: it converts an unlimited personal risk into a known, finite one. For a solo consultant with no inventory, no employees and no borrowed money, there is little risk to transfer, which is why paying Rs 30,000 a year to run a company can be pure cost.

3. The tax comparison, with the arithmetic shown

Corporate tax in India is a flat rate on the company's total income, not a slab. For a domestic company the position for FY 2026-27 is:

Regime	Base rate	Surcharge	Effective rate	Notes
Normal provisions, turnover up to Rs 400 crore in FY 2023-24	25%	7% above Rs 1 crore, 12% above Rs 10 crore	about 26.0% to 29.1%	Deductions and MAT credit available
Normal provisions, turnover above Rs 400 crore	30%	as above	about 31.2% to 34.9%	Rarely relevant below Rs 100 crore
Section 115BAA option (Section 200 of the Income-tax Act, 2025)	22%	10% flat	25.17%	Most deductions given up, no MAT, irrevocable
LLP	30%	12% above Rs 1 crore	31.2% below Rs 1 crore	Partner remuneration deductible within limits

Cess of 4% is included in the effective figures. One change is new this year: from 1 April 2026 the minimum alternate tax rate falls from 15% to 14%, and a company that opts for the 22% regime may now use accumulated MAT credit up to 25% of its normal tax liability in a year, carrying the rest forward for 15 years.

Now put Rs 20,00,000 of profit through three structures, before any director's salary and before the second layer of tax on dividends.

	Proprietorship	LLP	Private limited, 22% option
Tax on Rs 20,00,000	Slab rates on your personal income	Rs 6,24,000 (30% plus cess)	Rs 5,03,360 (25.17%)
Audit required	No	Yes, above Rs 40 lakh turnover	Yes, always
Government and professional cost of running it	Rs 0 to Rs 15,000	Rs 9,000 to Rs 25,000 a year	Rs 25,000 to Rs 60,000 a year
Second layer when you take money out	None — it is already yours	None — partner's share is not a dividend	Dividend taxed in your hands at slab

Read that table honestly and it says something most registration websites will not: below roughly Rs 40 lakh of annual profit, the private limited company usually costs you more in total than the LLP or the proprietorship, because the audit and filing bill is a fixed cost that does not shrink with your profit, and because the second layer of dividend tax claws back part of the rate advantage. The company becomes cheaper when the profit is large enough for the rate difference to beat the compliance bill, or when you need something only a company gives you: equity investors, ESOPs, or a corporate customer's vendor onboarding.

Two structural points that catch people:

- A company's profit is taxed twice if you take it out as dividend — once at 25.17% and again at your slab rate on the dividend. Money left in the business and reinvested is taxed once. This is why founders who reinvest everything prefer the company and founders who draw everything out often do not.
- A company can pay its working directors a salary, which is a deductible expense, so the company is taxed only on what is left. Section 31 covers how much salary is defensible.

4. The decision rules that follow from the numbers

Work down this table until a row describes you. It is deliberately blunt, because the cost of over-structuring is real and paid every year.

Your situation	Structure that usually fits	Why
Solo, turnover under Rs 20 lakh, no employees, no borrowing	Proprietorship	GST may not even be needed. Every rupee of compliance cost is waste at this size.
Solo or two partners, Rs 20 lakh to Rs 1 crore, professional services	LLP	Limited liability without an audit until Rs 40 lakh turnover, and no dividend layer.
Solo, above Rs 1 crore, corporate clients demanding a company	OPC or private limited	Vendor onboarding and credibility; OPC if you will never take an investor.
Two or more founders, planning to raise money or issue ESOPs	Private limited	Only a company can issue equity. This is not a tax decision.
Selling physical goods on marketplaces at scale	Private limited	Inventory, credit and platform contracts all want a corporate entity.
Family business with property or borrowed capital	LLP or private limited	The liability question dominates everything else here.

The honest case for waiting

You do not need to incorporate to open a current account, take Udyam benefits, invoice a client, or sell on a marketplace. You need a PAN, a bank account and, above the threshold, a GST number. Founders routinely spend Rs 20,000 and a month of attention on a company in their first quarter, when the same money would have bought their first hundred customers.

Register the company when one of these is true: a customer will not sign without a CIN, you are raising money, you are hiring and want ESOPs, or your annual profit has crossed the point where the rate advantage beats the annual bill. Any of those, and the paperwork pays for itself. None of them, and it is a subscription to compliance.

The five-year view

Setup cost is the number every quotation leads with and the least important number in the decision. What you are really choosing is an annual subscription:

Structure	One-time setup	Annual running cost	Five-year total
Proprietorship	Rs 0 to Rs 3,000	Rs 5,000 to Rs 15,000	Rs 25,000 to Rs 78,000
LLP	Rs 5,000 to Rs 15,000	Rs 9,000 to Rs 25,000	Rs 50,000 to Rs 1,40,000

Structure	One-time setup	Annual running cost	Five-year total
OPC	Rs 6,000 to Rs 15,000	Rs 20,000 to Rs 40,000	Rs 1,06,000 to Rs 2,15,000
Private limited	Rs 7,000 to Rs 25,000	Rs 25,000 to Rs 60,000	Rs 1,32,000 to Rs 3,25,000

Figures are government fees plus typical professional charges, before any tax, and before the cost of the audit that a company must have every year. The gap between the first row and the last is roughly one to three lakh rupees over five years — which is the price of limited liability and a CIN, and worth paying the moment a customer, a lender or an investor makes it a condition.

5. What the record says about who is registering

This is not a niche activity. DPIIT had recognised 2,50,046 startups as of October 2026, reporting over 25.42 lakh jobs across 770-plus districts and 56 industries, with 52% of them outside the metros and 48% with at least one woman director. On the MSME side, more than seven crore enterprises were on the Udyam register by early 2026, and the overwhelming majority of those are proprietorships.

Those two numbers describe the actual market you are joining: a very large base of informal businesses, a small formal corporate layer, and a policy apparatus that keeps making the formal layer cheaper and faster to enter. The zero filing fee, the three-year KYC cycle, the doubled small-company limits and the single-window NSWS portal are all part of that direction of travel. Use them.

PART TWO

Before you file

Most SPICe+ applications that come back are not rejected for anything complicated. They fail on a digital signature that is not linked, an electricity bill that is 63 days old, a name that is phonetically too close to an existing company, or an address written two different ways. This part removes those failures before you start.

6. The twelve documents, gathered once

Assemble everything before you open the portal. A file that is complete on day one takes seven to fourteen working days end to end; a file assembled in parallel with filing takes a month.

#	Document	Who it is for	What goes wrong
1	PAN card	Every director and subscriber	Name must match the PAN database character for character
2	Aadhaar	Every Indian director and subscriber	Address differs from the one you enter in the form
3	Passport-size photograph	Every director and subscriber	Blurred scan or wrong file size
4	Address proof	Every director and subscriber	Older than two months; name does not match PAN
5	Utility bill of the registered office	The premises	Older than two months; address abbreviated differently
6	No Objection Certificate from the owner	The premises	Forgotten because the director owns the flat — the company is a separate person and still needs it
7	Rent agreement or ownership proof	The premises	Missing; or rent agreement unsigned by one party
8	Digital Signature Certificate	Every director and subscriber	Expired, or not registered against your MCA user account
9	Consent and declaration	Directors and subscribers	Filed as INC-9 by the form itself, but details entered wrongly
10	Subscriber sheet	First shareholders	Number of shares does not match the capital clause
11	Object clause wording	The company	Vague, or narrower than what you will actually do
12	Proof of subscription money	The company, later	Needed for INC-20A; not needed at filing, but plan the transfer

The single most common cause of resubmission is a missing NOC when the registered office is a residence, including the director's own home. Attach it even when you think the bill implies ownership.

7. The digital signature, which must exist first

Nothing on the MCA portal can be filed on paper. Every director and every subscriber needs a Class 3 Digital Signature Certificate on a USB token, issued by a licensed certifying authority. Market price is roughly Rs 1,000 to Rs 1,500 per person for a one or two year token, and issue takes a day or two after video verification.

Three failures repeat constantly, and all three are fixed before filing:

- **The DSC is not registered on the portal.** Under MCA Services, view associated DSC. If it shows nothing against your user, register it before you attempt a submission.
- **Your old V2 user account was never migrated.** Every company e-form moved to the V3 portal in 2025. A V2 login that was not merged into a V3 business user will sign nothing, even with a valid token.
- **The signing utility is out of date.** Use a current version of the emSigner utility and a current Chrome or Edge build. An old utility produces a browser that simply cannot see the token.

Renew a certificate at least thirty days before it expires, not in the week it does. A DSC that expires on the filing date can fail time-zone validation on submission day, which is the least convenient possible moment to discover it.

8. The name, and why it is rejected

A company name must not be identical or too similar to an existing company or LLP, must not infringe a registered trademark, and must not use words the law reserves without approval — Bank, Exchange, National, Insurance, Stock Exchange, and the like. Under Section 4 of the Companies Act the last words must be Private Limited, Limited, or for an OPC the words One Person Company.

MCA's own guidance is that phonetic similarity counts, not just identical spelling. Avon Engineering and Avon Engineers are the same name to the examiner; so are a plural and a singular, or two words swapped in order. The portal's name check compares against registered companies and LLPs, but it does not screen trademarks for you, so run the IP India public search yourself before filing.

A practical sequence:

1. Write two candidate names, each with a distinct coined element rather than a generic descriptor.
2. Search the MCA company and LLP name registers for each, including near-misses: drop a letter, pluralise, change word order.
3. Search the IP India trademark public search for the same words in the classes you will trade in.
4. Check that the name still works as a domain, a handle and an email address. Changing a company name later means MGT-14, INC-24 and a fresh certificate.
5. File both names in order of preference in Part A. Approval reserves the name for 20 days, and Part B must be filed inside that window or the name lapses and you start again.

If you reserve the name by filing Part A separately rather than as a linked application, MCA charges Rs 1,000 for the reservation.

9. The registered office, which is a document problem

The registered office is the address the Registrar, the tax department and every legal notice will use. It does not have to be commercial premises; a home address is fine. What it must be is documented, consistently, three ways:

- A utility bill — electricity, gas or water — not older than two months from the date of filing. This is a hard rule and the portal enforces it.
- A No Objection Certificate from the owner, even if the owner is a director, because the company is a separate legal person.
- A rent agreement or lease deed if the premises are rented, or ownership proof such as a property tax receipt or sale deed if they are not.

Then check the address string itself. Third Floor on the NOC and 3rd Floor on the bill is a mismatch. So is a missing pin code, a different locality spelling, or a flat number that appears in one document and not the other. Copy one address string and paste it everywhere.

After incorporation, keep the office visible

Section 12 also requires the company's name and registered office to be painted or affixed at the office, and its name, CIN, address and contact details to appear on letterheads, invoices, notices and the website. Default on the registered-office requirement itself attracts Rs 1,000 a day up to Rs 1 lakh. This is the cheapest compliance in the Act and the one most often skipped by home-based companies.

Which state to register in

The registered office fixes three things at once: which Registrar of Companies has jurisdiction over you, which state's stamp duty you pay, and which state's professional tax and Shops and Establishments rules apply. For a business with one real location, that is the location. For an online business with no premises, it is the state where the founder actually lives, because the address has to be documented and a legal notice has to reach a human.

Founders sometimes choose a state with lower stamp duty. The saving is a few thousand rupees once, and the cost is that the tax, labour and municipal authorities you deal with are now in a state where you have no presence and a registered office you may struggle to prove if a notice is ever challenged. Pay the stamp duty where you are.

10. Authorised capital, paid-up capital, and why to keep both small

Authorised capital is the ceiling written into the memorandum — the most the company may ever issue. Paid-up capital is what shareholders have actually subscribed. They are not the same number, and confusing them causes two different problems.

Setting authorised capital high, on the theory that it looks substantial, costs you twice: state stamp duty is charged on it, and every future ROC filing fee is computed on a slab that rises with it. It buys nothing. The standard starting point is Rs 1,00,000 authorised and Rs 1,00,000 paid-up — or even Rs 10,000 to Rs 20,000 paid-up — and you increase authorised capital later with Form SH-7 if you actually need to issue more shares.

The fee position, from MCA's own SPICe+ FAQ:

Charge	Amount	Note
Incorporation filing fee, authorised capital up to Rs 15,00,000	Nil	The zero filing fee concession through SPICe+
Name reservation, if Part A is filed separately	Rs 1,000	Free when Part A and Part B are linked
PAN	Rs 66	Collected in the consolidated challan
TAN	Rs 65	Collected in the consolidated challan
Stamp duty on Part B, MoA and AoA	State schedule	Auto-calculated by the portal; see section 13
Digital Signature Certificate	Rs 1,000 to Rs 1,500 per person	Market rate
Professional fee, if you use a CA or CS	Rs 3,000 to Rs 15,000	Market range

Add it up for a two-director company with Rs 1 lakh authorised capital in a low-stamp-duty state and the government side of the bill is a few hundred rupees plus stamp duty. Any quote of Rs 25,000 you receive is mostly professional fee, and it is worth asking what exactly it covers.

PART THREE

Filing SPICe+

SPICe+ is one application that does the work of ten. It reserves the name, incorporates the company, allots the DIN, issues PAN and TAN, and can register for GST, EPFO, ESIC and professional tax while opening a bank account. This part walks the form as the portal presents it.

11. Part A: reserving the name

Part A captures the company type, the class of company, the main division of industrial activity by NIC code, and up to two proposed names in order of preference. Attach the trademark search result if you have one; it is not mandatory but it pre-empts a query.

Approval usually arrives in one to two working days. From approval you have 20 days to file Part B. If Part B is rejected on a point that requires a name change, the reservation is lost and you begin again at Part A, so the document work in Part 2 is not optional preparation — it is what protects the name you just won.

12. Part B: the eleven blocks

Part B opens as eleven blocks behind a progress bar. Each block must be saved before the next unlocks, and all saved blocks stay editable from the bar. The blocks, and what actually matters in each:

Block	What it captures	What to get right
1. Structure	Company type, class, category, sub-category	Private limited, company limited by shares, non-government. A wrong sub-category changes your later filings.
2. Address	Registered office address and contact	Paste the exact string from the utility bill and the NOC
3. Subscribers and directors	Count of first subscribers and directors	Two directors, two subscribers, at least one director resident in India for 182 days in the previous financial year
4. Non-individual subscribers	Body corporate shareholders, if any	Their CIN and board resolution must be attached
5. Individual subscribers and directors	Identity, address, occupation, DIN	Name, date of birth and address must match PAN and Aadhaar exactly
6. OPC nomination	Nominee details	Only for an OPC. The nominee needs written consent in INC-3
7. Stamp duty	State and amount	The portal computes it; pay it in the same flow
8. PAN and TAN	Confirmation of the linked applications	Bundled; nothing to upload
9. Attachments	MoA, AoA, proofs, declarations	Files under the portal's size limit, flattened, no unusual fonts
10. Director declaration	INC-9 declarations	Auto-generated; read before signing
11. Professional certification	CA, CS, cost accountant or advocate	This is a real certification with real liability, not a formality

The memorandum and articles are filed as eMoA (Form INC-33) and eAoA (Form INC-34) where the subscriber count allows, and as attachments where it does not. The object clause inside the eMoA is the part to think about: it must be specific enough to match the NIC code you selected and broad enough to cover the two or three adjacent things you will plausibly do in three years. Changing objects later needs a special resolution, MGT-14 and fees.

The capital clause, worked

Take Rs 1,00,000 authorised capital divided into 10,000 equity shares of Rs 10 each. Two subscribers take 5,000 shares each, so paid-up capital is Rs 50,000 and each subscriber owes the company Rs 25,000. Three numbers must agree everywhere: the 10,000 shares in the authorised clause, the 10,000 in Part B, and the 10,000 in the subscriber sheet. If paid-up capital exceeds authorised capital, or if the share counts differ between the eMoA and the form, the application fails validation before a human ever reads it.

The same Rs 25,000 per subscriber is the amount that must appear as a credit in the company's bank account before INC-20A can be filed. Decide the number now, agree it with your co-founder in writing, and transfer exactly that amount from each subscriber's own account.

The object clause, in practice

An object clause that says the company may carry on any business the directors think fit is rejected. One that names a single narrow activity will need amending the first time you add a service line. The working pattern is a main object stated plainly, two or three adjacent activities, and an enabling clause for things incidental to them:

> *To carry on the business of developing, licensing and supporting software and digital products; to provide information technology, design and business consulting services; to train and certify users in those products; and to do all such things as are incidental or conducive to those objects.*

13. The linked registrations, and the real fee sheet

AGILE-PRO-S (Form INC-35) rides along with Part B and can apply for GSTIN, EPFO, ESIC and professional tax registration, and open a current account with an integrated bank. Take the ones you will need within twelve months and skip the ones you will not: an unnecessary GSTIN means monthly returns from month one.

Stamp duty is the one charge that genuinely differs by state, and it is charged on three components — Part B, the MoA and the AoA — with the AoA usually scaled to authorised capital. MCA publishes the schedule and the portal computes the amount before you pay, so treat the table below as the shape of the charge and the portal's figure as final.

State	Part B	MoA	AoA
Delhi	Rs 10	Rs 200	0.15% of authorised capital, capped at Rs 25 lakh
Haryana	Rs 15	Rs 60	Rs 60 up to Rs 1 lakh capital, Rs 120 above
Maharashtra	Rs 100	Rs 200	Rs 1,000 for every Rs 5 lakh of authorised capital, capped at Rs 50 lakh
Uttar Pradesh	Rs 10	Rs 500	Rs 500
Tamil Nadu	Rs 20	Rs 200	Rs 500 for every Rs 10 lakh of authorised capital, capped at Rs 5 lakh
Gujarat	Rs 20	Rs 100 to Rs 300	0.5% of authorised capital, capped at Rs 5 lakh
Rajasthan	Rs 10	Rs 500	0.5% of authorised capital, subject to a minimum of Rs 5,000 and a cap of Rs 25 lakh
Madhya Pradesh	Rs 50	Rs 2,500	0.15% of authorised capital, minimum Rs 5,000, cap Rs 25 lakh
Telangana and Andhra Pradesh	Rs 20	Rs 500	0.15% of authorised capital, minimum Rs 1,000, cap Rs 5 lakh
Punjab	Rs 25	Rs 5,000	Rs 5,000 up to Rs 1 lakh capital, Rs 10,000 above

State	Part B	MoA	AoA
Bihar	Rs 20	Rs 500	0.15% of authorised capital, minimum Rs 1,000, cap Rs 5 lakh
Odisha	Rs 10	Rs 300	Rs 300

Worked example, Maharashtra, Rs 1,00,000 authorised capital: Part B Rs 100 plus MoA Rs 200 plus AoA Rs 1,000 (one slab of Rs 5 lakh or part of it) comes to Rs 1,300 of stamp duty, on top of the Rs 131 for PAN and TAN. The incorporation filing fee itself is nil. States not listed follow their own schedule; the portal will show the figure before payment, and it is not refundable on rejection.

14. The nine causes of rejection, and the fix for each

Practitioners report that a large share of SPICe+ applications come back at least once. Almost none of the reasons are legal; they are data hygiene. Here is the list to check before you submit.

Cause	Fix
Name phonetically close to an existing company or a trademark	Search near-misses and the trademark register; add a coined element
DSC not registered, expired, or on an unmigrated V2 account	Verify under DSC services; renew 30 days early; migrate to a V3 business user
Registered office bill older than two months, or no NOC	Fetch a current bill; attach the owner's NOC even for your own flat
Address written differently across documents	Use one string everywhere, down to the floor and pin code
Director name or date of birth not matching PAN and Aadhaar	Correct the portal entry, not the document
Capital clause inconsistent between the eMoA and Part B	Check that authorised, subscribed and share counts reconcile
Object clause vague or mismatched with the NIC code	Name the activity plainly and add two adjacent ones
Attachment over the portal's file size or with embedded fonts	Flatten, compress below the limit, save as PDF/A
INC-20A already pending, or registered office not verified	Clear pending forms before filing the next one

The good news is that a rejected application can be edited and resubmitted within the validity of its service request number, and registration fees are generally refundable on rejection. Stamp duty paid on the MoA and AoA may not be. That asymmetry is why the cheap checks above are worth an hour.

15. What arrives, and what to verify the day it arrives

On approval the Registrar issues a Certificate of Incorporation carrying the 21-character Corporate Identification Number, the date of incorporation and the registered office. PAN and TAN are issued on the same document, and a GSTIN applied through AGILE-PRO-S follows a few days later.

Before you celebrate, verify four things: the company name is exactly what you applied for; the CIN and PAN match the certificate; every director's name and address is correct; and the registered office address is the one you can actually receive post at. Correcting a director's particulars afterwards is a DIR-12, and correcting a name is a longer journey.

Then put the certificate, the MoA, the AoA, the PAN, the TAN and the stamp duty receipt in one folder that you will hand to your auditor every year. Founders who cannot produce the MoA in year three spend a week and a fee getting a certified copy.

The filing sequence in one line

DSC for every director and subscriber → Part A name reservation → Part B in eleven blocks within 20 days → eMoA and eAoA → AGILE-PRO-S → stamp duty and challan → professional certification → ROC scrutiny → Certificate of Incorporation with CIN, PAN and TAN.

Doing it yourself, or paying someone

Start with the fact most DIY guides skip: SPICe+ cannot be submitted without a practising chartered accountant, company secretary, cost accountant or advocate certifying the application. Block 11 is that certification, and the professional signs it with personal liability attached. So there is no version of incorporation in which you avoid a professional altogether. The real choice is how much of the work you do before they certify.

Work	Do it yourself	Hand it over
Name search and trademark check	You, an hour, free	Included in the fee
Document assembly and address matching	You, two hours, free	Included
Drafting objects and articles	From a template, with the risk of a mismatch	Drafted to your activity
SPICe+ filing and portal handling	You, with a professional certifying at the end	They file and handle resubmissions
Typical all-in cost, two directors, Rs 1 lakh capital	Rs 2,000 to Rs 5,000 plus stamp duty	Rs 7,000 to Rs 25,000
Who fixes a rejection	You, with the certifying professional's time	Them

The honest read: if you have one address, two Indian directors, a simple object clause and no foreign shareholding, preparing the file yourself and paying a professional to certify is the cheapest route that still ends in a valid certificate. If any of those conditions is false — a foreign shareholder, a converted entity, a regulated business, a name dispute — hand it over, because the cost of one failed resubmission in lost stamp duty and lost weeks is more than the fee.

PART FOUR

The first 180 days

The certificate of incorporation is a starting gun, not a finish line. Six things must happen in the first six months, and one of them carries a Rs 50,000 penalty plus a daily charge on every officer. This part puts them on a dated calendar.

16. The clock, in one table

Days are counted from the date printed on the certificate of incorporation.

When	What must be done	Provision	Cost of missing it
Immediately	Open the current account, deposit each subscriber's subscription money, keep the bank statement	Section 10A	Blocks INC-20A
Within 30 days	Hold the first board meeting	Section 173(1)	Procedural default, weakens every later resolution
Within 30 days	Appoint the first statutory auditor by board resolution	Section 139(6)	Power shifts to shareholders in general meeting
Within 15 days of that resolution	File ADT-1	Section 139 read with the rules	Rs 100 a day additional fee
Within 60 days	Issue share certificates to subscribers	Section 56(4)	Penalty on the company and every officer in default
Within 180 days	File INC-20A, declaration of commencement of business	Section 10A read with Rule 23A	Rs 50,000 on the company; Rs 1,000 a day per officer up to Rs 1 lakh; company cannot legally trade; strike-off proceedings possible
From day one	Maintain statutory registers and the minutes book	Sections 88, 85, 170	Adverse at audit and in any dispute
As applicable	GST, Udyam, professional tax, Shops and Establishments, DPIIT recognition	Various	Interest, penalties or lost benefits

17. The bank account and the money that must move

Open the current account in the company's name with the certificate of incorporation, the MoA and AoA, the PAN, and a board resolution authorising the signatories and the mandate. If you applied through AGILE-PRO-S, the account opening is already in motion with the integrated bank.

Then transfer the subscription money — the exact amount each subscriber agreed in the memorandum to pay for their shares — from each subscriber's own bank account into the company account. This is not a formality. INC-20A is a declaration that subscribers have paid, evidenced by a bank statement showing the credits. Founders who fund the company with a personal loan or a single transfer from one director's account end up re-doing the exercise.

Two disciplines from day one save real money: never mix personal and company spending, and record every director's loan or advance in the books with its terms. Unrecorded related-party money is the first thing an auditor asks about and the first thing a tax officer recharacterises.

18. INC-20A, the deadline that ends companies

Section 10A says a company with share capital may not commence business or borrow until a director files a declaration, in Form INC-20A, that every subscriber has paid for their shares, and until the registered office has been verified. The form is due within 180 days of incorporation and must be verified by a practising company secretary, chartered accountant or cost accountant.

The consequences are stacked, not alternative:

- A penalty of Rs 50,000 on the company.
- Rs 1,000 per day on every officer in default, capped at Rs 1 lakh per officer.
- The company cannot legally commence business or exercise borrowing powers until it is filed — which means contracts signed before it are exposed.
- If the Registrar believes the company is not carrying on business, it may begin proceedings to remove the company from the register.

The fix is trivial: file INC-20A in the week the subscription money lands, not in month five. Keep the bank statement showing the credits ready, and get the professional certification at the same time as the filing.

19. Board, auditor, shares, registers

The first board meeting within 30 days is where the company's machinery is installed: it notes the incorporation, adopts the first financial year, appoints the auditor, authorises the bank account, and approves the share allotment to subscribers. Minutes must be written and signed. A company with no minutes is a company that cannot prove anything it did.

Item	Rule	Practical note
Board meetings	Four a year, gap not more than 120 days between two meetings	Small companies and OPCs need one meeting in each half of the calendar year, with at least 90 days between them
First auditor	Appointed by the board within 30 days of incorporation, holding office until the first AGM	File ADT-1 within 15 days of the resolution
Share certificates	Issued within 60 days of allotment, with the stamp duty paid	Keep the allotment resolution, the subscriber sheet and the register of members together
Statutory registers	Register of members, of directors and key managerial personnel, of charges, and the minutes book	Start them digitally on day one; backdating later is a red flag
Related-party contracts	Board approval and disclosure where the law requires	Any rent paid to a director for the registered office is a related-party transaction

20. The other registrations, and which you actually need

Incorporation is one registration among several, and the set you need depends entirely on what you do. Take each one only when a rule or a customer forces it.

Registration	When it is required	Cost and time
GST	Turnover above Rs 40 lakh for goods or Rs 20 lakh for services, or immediately if you supply goods inter-state, sell through an e-commerce operator that collects TCS, or fall in another compulsory category	No government fee; three working days in clean cases after Aadhaar authentication
Udyam (MSME)	Optional, but free and useful: priority-sector lending, delayed-payment protection, government tender preferences	Free, online, near-instant
Professional tax	Where the state levies it, for the entity and for employees	State fee, small; often bundled into SPICe+ for Maharashtra

Registration	When it is required	Cost and time
Shops and Establishments	Where there is a physical premises, under the state's labour rules	State fee; varies from nominal to a few thousand rupees
DPIIT recognition	If you want the startup benefits in section 33	Free, through the National Single Window System
IEC	Only if you export or import goods	Online, nominal fee
Sector licences	FSSAI for food, drug licence for pharma, and so on	Varies; check before you sign a lease

The common error here is the opposite of the one you would expect: founders collect registrations as trophies. A GST number you do not need means twelve GSTR-1 and GSTR-3B filings a year, late fees of Rs 50 a day per return for nil filings, and a cancellation process if you stop. Register when the rule bites.

Your first employee changes five things

Hiring is the point at which a small company starts looking like an employer to the state, and the registrations stop being optional once the thresholds are crossed.

- **Provident fund.** EPFO coverage is mandatory once an establishment has twenty or more employees, and voluntary before that. The wage ceiling for mandatory coverage was raised to Rs 25,000 a month in September 2026, which extends coverage to an estimated 51 lakh additional employees. Monthly ECR filing and payment fall due by the 15th.
- **Employees' State Insurance.** Applies to covered establishments for employees within its wage limit, with employer and employee each contributing a share. It is a separate registration from EPFO even though SPICe+ can start both.
- **TDS on salary.** Deduct under section 192, deposit by the 7th of the following month, and file the quarterly 24Q return. Issue Form 16 by 15 June.
- **Professional tax.** Register the establishment where the state levies it, and deduct from salaries at the state's slab rates.
- **POSH.** An Internal Committee is required once an establishment has ten or more employees, with the composition, training and annual reporting the Act prescribes.

None of this has to be in place on the day you offer a job, but all of it has to be in place before the first salary cycle closes. A payroll that deducts PF and does not deposit it creates a personal liability for the directors that limited liability does not cover.

21. The 180-day plan, dated

Print this and write your own dates against it. The right-hand column is the one that matters.

Day	Action	Owner	Your date
Day 0	Certificate received. Verify name, CIN, PAN, TAN, directors, address		
Days 1 to 7	Open the current account; each subscriber transfers their subscription money from their own account		
Days 7 to 15	First board meeting: adopt accounts, appoint auditor, authorise bank mandate, approve allotment		
Days 15 to 30	File ADT-1; issue share certificates; open the statutory registers		
Days 15 to 30	Decide GST, Udyam, professional tax and Shops and Establishments; apply for what is needed		

Day	Action	Owner	Your date
Days 30 to 45	Engage the accountant; set up bookkeeping and the invoice format with name, CIN, address and GSTIN		
Days 45 to 60	Name board at the registered office; website and letterhead updated		
Days 60 to 120	Apply for DPIIT recognition if eligible; open the compliance calendar for the year		
Day 120	File INC-20A with the bank statement showing subscription money		
Day 150	Check that every one of the above is actually done, not assumed		

If you are already past day 180 without INC-20A

File it today. The daily penalty stops accruing when the default ends, and the company becomes able to trade again the moment the form is approved. Waiting does not reduce the exposure; it increases it by Rs 1,000 a day per officer, and it keeps the strike-off power alive. Take the bank statement, the board resolution and a professional to certify, and file.

PART FIVE

The annual calendar

A company files whether or not it traded, whether or not it earned, and whether or not you remembered. Four filings repeat every year, one repeats every three, and the additional fee is Rs 100 a day per form with no cap. This part is the calendar plus the arithmetic of being late.

22. The year, for a company with a 31 March year end

When	Filing or event	Provision	Late cost
Four times a year	Board meetings, no gap over 120 days	Section 173	Penalty on company and officers
15 June, 15 September, 15 December, 15 March	Advance tax instalments: 15%, 45%, 75%, 100%	Income-tax Act	1% interest per month
By 30 September	Annual general meeting	Section 96	Fine up to Rs 1 lakh, plus Rs 5,000 a day for continuing default
Within 30 days of the AGM	AOC-4, financial statements	Section 137	Rs 100 a day, no cap, plus a separate penalty
Within 15 days of the AGM	ADT-1, auditor appointment or reappointment	Section 139	Rs 100 a day
Within 60 days of the AGM	MGT-7, or MGT-7A for a small company or OPC	Section 92	Rs 100 a day, no cap, plus a separate penalty
By 30 June, once every three financial years	DIR-3 KYC for every director	Rule 12A	DIN deactivated; Rs 5,000 to reactivate
31 October	Income-tax return, ITR-6, where audit applies	Section 139	Rs 5,000 and interest
30 September, extended to 21 October for AY 2026-27	Tax audit report, where applicable	Section 44AB	0.5% of turnover, capped
30 April and 31 October	MSME-1, half-yearly return of outstanding dues to micro and small suppliers, where applicable	Section 405	Adjudication risk
30 June	DPT-3, return of deposits and exempted loans, where applicable	Companies (Acceptance of Deposits) Rules	Rs 100 a day

Every clock starts from the date the AGM was actually held, not from 30 September. A company that met on 15 September files AOC-4 by 15 October, not 30 October. Calendar apps that only know the statutory outer date are how companies file "on time" and still pay.

23. AOC-4 and MGT-7: what the delay actually costs

Take a company with Rs 10,00,000 authorised capital whose AGM was held on 30 September 2026. AOC-4 was due 30 October and MGT-7A on 29 November. Suppose both are filed on 30 April 2027.

Item	AOC-4	MGT-7A
Days late	182	152
Additional fee at Rs 100 a day	Rs 18,200	Rs 15,200

Item	AOC-4	MGT-7A
Normal filing fee for this capital slab	Rs 400	Rs 400
Penalty under section 137(3) or 92(5), company	Rs 10,000 plus Rs 100 a day, capped at Rs 2 lakh	Rs 10,000 plus Rs 100 a day, capped at Rs 2 lakh
Penalty on each officer in default	Rs 10,000 plus Rs 100 a day, capped at Rs 50,000	Rs 10,000 plus Rs 100 a day, capped at Rs 50,000

The additional fee is automatic — the portal adds it at filing, and paying it does not settle the separate penalty, which is imposed by an adjudicating officer after notice. Small companies, OPCs, producer companies and recognised startups get the penalty halved under section 446B, but the Rs 100 a day is not halved.

What your auditor will ask for, and why to collect it monthly

The audit fee you are quoted assumes a clean file. A messy one costs more, because the auditor bills the hours spent reconstructing your year. Ten items cover almost all of it:

- Bank statements for every account, month by month, reconciled to the books
- Sales invoices in sequence, with the GST returns they were reported in
- Purchase bills and expense receipts, filed by month, with the ones above the threshold carrying a GSTIN
- TDS challans and the quarterly returns that match them
- Fixed asset invoices, with the date each asset was put to use
- Loan and director's loan documents, with the interest terms
- Payroll register, PF and ESI challans, and Form 16s
- Statutory registers and the minutes of board meetings and the AGM
- The previous year's audited accounts and the income-tax return
- A schedule of debtors and creditors, aged

The habit that makes all of this cheap: one folder per month, named for the month, holding the bank statement, the sales register, the purchase bills and the tax challans. Twelve folders at year end is an audit; a shoebox is a project.

> **The waiver that is live as you read this**
>
> MCA General Circular 05/2026, dated 24 October 2026, waives additional fees on FY 2025-26 annual filings: AOC-4 and its variants may be filed up to 31 December 2026, and MGT-7 or MGT-7A up to 31 January 2027, paying only the normal fee. Three cautions. It does not extend the AGM deadline, and a late AGM remains a default under section 96. A filing made after the relaxed date pays additional fees from the original due date, not from the relaxed one. And the relief covers companies, not LLPs.

24. DIR-3 KYC has changed, and most guides have not caught up

The annual director KYC is gone. Under Rule 12A as substituted with effect from 31 March 2026, every individual holding a DIN on 31 March of a financial year files Form DIR-3-KYC-Web on or before 30 June of the third following financial year — once every three years, not every year.

Situation	When the next KYC is due
Directors who had completed KYC before the change	By 30 June 2028
DIN allotted during FY 2025-26, no KYC filed for that year	By 30 June 2029, three financial years later
Any change of personal mobile number, email address or residential address	Within 30 days of the change, in the same form, with the prescribed fee
DIN deactivated for past non-filing	Reactivate in the same form with a Rs 5,000 fee

Two practical points. The form is now a single web form, DIR-3-KYC-Web, and the older e-form is discontinued. And the 30-day rule for a changed mobile number, email or address operates independently of the three-year cycle — a director who changes their phone and does nothing has a deactivation risk even in a year when no KYC was due.

A deactivated DIN blocks every filing that needs that director's signature, including AOC-4 and MGT-7. Reactivation costs Rs 5,000 and a few working days, usually in the middle of annual filing season. Diarise 30 June 2028 now.

25. What missing filings does to you personally

The penalties are the visible cost. The structural cost is worse, and it attaches to the person rather than the company.

- **Director disqualification.** A director of a company that fails to file its annual return or financial statements for three consecutive financial years is disqualified under section 164(2), and cannot be appointed in any company for five years. Your DIN becomes unusable for new incorporations.
- **Strike-off.** The Registrar can remove a company from the register under section 248 for non-filing. That is not a clean exit: the directors remain liable, and restoring the company later needs a court or NCLT route.
- **Credit and contracts.** Banks and large customers check MCA filings. A company with two years of missing AOC-4 fails vendor onboarding, and the founder usually finds out at the worst moment — during a tender or a funding round.
- **Accumulating fees.** The Rs 100 a day does not expire. Two years of two forms unfiled is a five-figure bill before any penalty.

Filing when something changes

The annual calendar is the floor. Every structural change also has a form and a 30-day window, and these are the ones companies forget because nothing reminds them.

Change	Form	Deadline
A director appointed, resigns or his details change	DIR-12	30 days from the change
Registered office moves within the same Registrar's jurisdiction	INC-22	30 days
Registered office moves to another state	INC-23, to the Regional Director	As prescribed in the rules; a longer route
Authorised capital increased	SH-7	30 days from the resolution
Shares allotted to anyone new	PAS-3	30 days from the allotment
Company name changed	MGT-14, then INC-24	Within the prescribed period after the special resolution
Auditor appointed to fill a casual vacancy	ADT-1	30 days
A charge or loan secured on company assets	CHG-1	30 days from creation
Any special resolution, and the board resolutions listed in section 117(3)	MGT-14	30 days from the resolution

Two of these are quietly expensive. A share allotment filed late under PAS-3 carries a penalty per day that rises quickly, and a charge not registered within the window can leave the lender unsecured against other creditors — which is the lender's problem until it becomes yours at the next loan.

26. The minimum viable compliance routine

None of this requires a compliance department. It requires a calendar and a quarterly hour.

1. On the day the certificate arrives, enter all the dates in section 22 into a shared calendar with 30-day and 7-day reminders.
2. Once a quarter, hold the board meeting, sign the minutes, and reconcile the bank account against the books.
3. In April, close the books and hand the auditor the bank statements, the invoices, the expense bills and the statutory registers.
4. By 30 September, hold the AGM, adopt the accounts, and reappoint or appoint the auditor.
5. File ADT-1, then AOC-4, then MGT-7A in that order, because each references the one before.
6. Once every three years, in the June of the year, file DIR-3-KYC-Web for every director.
7. Once a year, read your own MCA master data page and check that the address, the directors and the capital are still true.

Invoices, records and how long to keep them

A GST invoice is a legal document with required fields. If yours is missing any of them, your customer cannot claim input tax credit and will ask you to reissue it, which is the least profitable conversation in business. The invoice needs the supplier's name, address and GSTIN; a consecutive serial number; the date; the recipient's name, address and GSTIN where registered; the HSN or SAC code; the description; the taxable value; the rate and amount of tax split between central and state, or integrated tax; the place of supply for inter-state work; and the signature or digital signature.

Number invoices in one continuous series, never restart in a new financial year in a way that breaks the sequence, and never issue a fresh invoice to correct an old one — issue a credit note. Keep the books of account for at least eight financial years, as the Companies Act requires, and keep the GST records for the period the GST law prescribes, which is longer than most founders assume. Digital copies are fine, provided you can produce them on demand and they are backed up somewhere that is not one laptop.

PART SIX

The LLP route

For two or more professionals, an LLP is often the better deal: limited liability, no mandatory audit below the thresholds, no dividend layer, and two forms a year. It is also the structure most often run badly, because the deadlines are earlier than founders expect.

27. Registering an LLP

An LLP is registered under the LLP Act, 2008 with the Ministry of Corporate Affairs, and it does not use SPICe+. The route is its own:

1. Obtain a Class 3 DSC for each designated partner.
2. Reserve the name through the RUN-LLP service. The name must end with LLP or Limited Liability Partnership and must clear the same similarity and trademark tests as a company name.
3. File FiLLiP, the incorporation form, which also allots the DPIN to partners who do not already hold a DIN.
4. Receive the Certificate of Incorporation.
5. File the LLP agreement in Form 3 within 30 days of incorporation. This is the step most often missed, and it is the document that defines profit sharing, capital, decision rights and exit. A late Form 3 attracts a fee that multiplies with delay.

There is no minimum capital contribution. An LLP can be registered with a contribution of Rs 1,000 between the partners, and the widely repeated claim that an LLP needs Rs 1 lakh is a leftover from rules that no longer apply to companies either. Stamp duty on the incorporation documents and on the LLP agreement is charged under the state schedule.

LLP or private limited, side by side

	LLP	Private limited
Liability	Limited to agreed contribution	Limited to unpaid share value
Audit	Only above Rs 40 lakh turnover or Rs 25 lakh contribution	Every year, no threshold
Annual MCA forms	Form 11 and Form 8	AOC-4, MGT-7 or 7A, ADT-1
Tax on profit	30% plus cess, or 31.2% below Rs 1 crore	25.17% under the 22% option, or 25% to 30% plus surcharge and cess
Second tax layer on withdrawal	None	Dividend taxed in the shareholder's hands
Can take equity investment	No	Yes
ESOPs	No	Yes
Bank and vendor credibility	Moderate	Highest
Typical annual cost	Rs 9,000 to Rs 25,000	Rs 25,000 to Rs 60,000
Best fit	Two or more professionals splitting fees	Founders who will raise money, hire, or sell to large customers

The rate difference is real but smaller than it looks: 25.17% against 31.2% on a profit of Rs 15 lakh is about Rs 90,000 a year, against an extra Rs 15,000 to Rs 35,000 of compliance cost and a second layer of dividend tax when the money comes out. The company wins on tax when profits are retained and reinvested, and wins outright when the business needs investors or ESOPs. It loses when the partners simply split the profit every year.

Converting later, honestly

Moving from an OPC to a private limited company is the clean case: appoint a second director and shareholder, pass the resolution, and file Form INC-6. No waiting period applies since April 2021, and the company keeps its CIN, its PAN and its history.

Moving from a proprietorship to a company or LLP is not a conversion at all. It is a new entity plus a transfer of the business into it — contracts, licences, GST registration, bank accounts, employees and assets all have to move, and the transfer itself can have tax consequences depending on how it is structured. Plan it with a chartered accountant in the same quarter you plan the incorporation, not after the certificate arrives.

Moving an LLP into a company runs through the National Company Law Tribunal route and is a project rather than a form. If a company is likely within two years, start as a company.

28. Two forms a year, and the multiplier that replaces the daily fee

Form	What it reports	Due date	Signed by
Form 11, annual return	Partners, their contributions, and the LLP's state of affairs at 31 March	30 May, 60 days from the year end	Two designated partners
Form 8, statement of account and solvency	The year's accounts and a solvency declaration	30 October, 30 days from the end of the half-year	Two designated partners, plus auditor certification above the threshold
Form 3 or Form 4	Changes to the LLP agreement, or to partners	Within 30 days of the change	Designated partner
ITR-5	Income-tax return	31 July, or 31 October where audit applies	Designated partner

Both annual forms are mandatory for every LLP — active, dormant, or with zero turnover. Audit is required only where turnover exceeds Rs 40 lakh or partners' contribution exceeds Rs 25 lakh, and an LLP below both thresholds files Form 8 signed by two designated partners without a chartered accountant's certification. That single rule is the biggest cost difference between an LLP and a company.

Late fees for LLPs are not Rs 100 a day. Since April 2022 they are a multiple of the normal filing fee, and the multiple steps up with the delay:

Delay from due date	Small LLP	Other LLPs
Up to 15 days	1 times the normal fee	1 times
15 to 30 days	2 times	4 times
30 to 60 days	4 times	8 times
60 to 90 days	6 times	12 times
90 to 180 days	10 times	20 times
180 to 360 days	15 times	30 times
Beyond 360 days	15 times plus Rs 10 a day	30 times plus Rs 20 a day

A small LLP is one whose turnover did not exceed Rs 40 lakh in the preceding financial year and whose partners' total contribution does not exceed Rs 25 lakh — both conditions, not either. Because the multiplier moves in bands rather than accruing daily, an LLP that is already late should file before the next band, not simply soon.

29. Closing an LLP properly

An LLP that has stopped trading does not disappear. It keeps filing Form 11 and Form 8, and the multiplier keeps stepping up. The clean exit is Form 24, application for strike-off, filed after the partners resolve to close and the LLP has no assets or liabilities, with the required statements and indemnity. Do that in the year it stops, not in year three.

PART SEVEN

Tax and the benefits you can claim

Two decisions inside the company decide most of your tax outcome: which corporate regime you elect, and how you take money out. Then there are the startup benefits, which are real but narrower than the internet suggests.

30. Choosing the corporate regime, and why it is permanent

A domestic company can stay in the normal regime, at 25% if turnover in FY 2023-24 was up to Rs 400 crore and 30% above that, with surcharge of 7% or 12% and 4% cess, and with MAT at 14% from 1 April 2026. Or it can opt for 22% under section 115BAA, which with 10% surcharge and 4% cess is 25.17%, with no MAT and with most deductions and incentives given up.

The election is irrevocable. Once you opt, you cannot return to the normal regime, and unutilised MAT credit lapses except for the new 25%-a-year utilisation window. So the decision is not "which rate is lower" but "will I ever want the deductions I am giving up".

If this is true	The 22% regime usually wins	The normal regime usually wins
You claim, or plan to claim, 80-IAC or another profit-linked holiday	No	Yes
You have large unabsorbed MAT credit	Only with the new 25% window	Yes
You claim additional depreciation or scientific research deductions	No	Yes
You are a plain services company with taxable profit and no incentives	Yes	
You are an eligible new manufacturing company	Consider 15% under 115BAB instead	

One procedural relief arrived with the Income-tax Rules, 2025: the separate prescribed form that used to be filed before the return to exercise the option has been dispensed with, and the election can be made in the return itself. That makes the choice easier to get right and easier to get wrong late.

31. Salary or dividend: how the second layer works

A company's profit is taxed at the company level. What the shareholder then receives as dividend is taxed again in the shareholder's hands at slab rates, with tax deducted at source above the threshold. Salary to a working director is different: it is a deductible expense, so it reduces the company's taxable profit and is taxed once, in the director's hands.

That makes salary attractive, and it is why salary is the first thing a tax officer examines. Salary must be commensurate with the work actually done and supported by a board resolution, an appointment letter and Form 16. A salary that strips out the entire profit of a company with no other employees is a recharacterisation risk, not a planning idea.

Two more mechanics worth knowing before your first year end:

- Advance tax applies to companies and LLPs too: 15% of the estimated liability by 15 June, 45% by 15 September, 75% by 15 December and 100% by 15 March. Missing an instalment costs 1% interest a month on the shortfall.

- Payments to partners — remuneration, interest on capital and similar — attract withholding above Rs 20,000 a year under section 393 of the Income-tax Act, 2025, the successor to section 194T. Do not assume a partner payment is outside TDS.

32. GST setup, in the order it should be done

GST is a separate registration with its own thresholds, and the threshold is not the only trigger.

Situation	Registration required
Exclusive supply of goods, normal category state, turnover up to Rs 40 lakh	Not required by turnover
Services, or mixed supply, normal category state, turnover up to Rs 20 lakh	Not required by turnover
Special category states	Rs 20 lakh for goods and Rs 10 lakh for services, with state-specific variations
Inter-state supply of goods	Required from the first rupee
Supplying goods through an e-commerce operator that collects TCS	Required, subject to the small-supplier exemption conditions
Liable to pay under reverse charge, casual or non-resident taxable person, input service distributor	Required from the first rupee

The composition scheme is the small taxpayer's alternative: a flat rate on turnover, quarterly payment, one annual return, no input tax credit, and no inter-state outward supply. The turnover ceiling is Rs 1.5 crore for goods and Rs 50 lakh for the 6% service option, with lower ceilings in special category states. If your customers are businesses that need input tax credit, composition costs you more than it saves.

Two housekeeping points that decide whether GST is a benefit or a nuisance: reconcile GSTR-2B against your purchase register every month, and make sure the turnover you report in GST matches the turnover in your financial statements and in Form 8 or AOC-4. A mismatch between GSTR-3B turnover and the audited accounts is the easiest thing for a reviewer to flag and the hardest thing to explain two years later.

33. DPIIT recognition and the tax holiday, without the hype

Recognition as a startup is granted by DPIIT and is free. The entity must be a private limited company, a registered partnership firm, an LLP, or a cooperative society; must be within ten years of incorporation, twenty for a deep-tech startup; must not have turnover above Rs 200 crore in any financial year, Rs 300 crore for deep tech; must be working on innovation, improvement or a scalable model with employment or wealth-creation potential; and must not be formed by splitting up or reconstructing an existing business. Applications run through the National Single Window System.

Benefit	What it actually is	The catch
Income-tax holiday	100% of profits for any three consecutive years out of the first ten, now section 140 of the Income-tax Act, 2025 (formerly 80-IAC)	Needs a separate Inter-Ministerial Board certificate; only companies and LLPs; incorporated between 1 April 2016 and 31 March 2030; turnover up to Rs 100 crore; and it is not available if you have opted for the 22% regime
Loss carry-forward	Relaxed set-off of losses for eligible startups, now section 119 of the 2025 Act	Companies only, not LLPs or firms
ESOP tax deferral	Tax on ESOP perquisite deferred for up to 60 months, or until sale or exit	Requires the eligible-startup certificate
Angel tax	Abolished. Section 56(2)(viib) does not apply from assessment year 2025-26	Nothing to claim — it simply no longer applies

Benefit	What it actually is	The catch
Self-certification	Self-certify compliance with specified labour and environment laws for a period	Does not exempt you from the underlying law
Public procurement	Exemption from prior turnover and experience requirements in government tenders, and from earnest money deposit	Tender-specific conditions apply
Faster exit	Notified as fast-track firms for winding up	Still a formal process

As of October 2026, 4,467 startups held the section 80-IAC certificate of eligibility, out of 2,50,046 recognised startups. That ratio is the honest summary of this section: recognition is easy and broadly useful; the tax holiday is a separate, harder gate that most companies never clear. Apply for recognition because it costs nothing and opens doors, and treat the holiday as a bonus rather than a plan.

The annual tax workflow, month by month

Tax work in a small company is seasonal, and each season has one job.

When	What you do	Why it matters
April to June	Close the previous year's books; reconcile GST turnover to the accounts; pay the first advance tax instalment by 15 June	Interest under the advance tax provisions starts here
July to September	Complete the audit; file the tax audit report where applicable; hold the AGM by 30 September and adopt the accounts	The AGM date starts the AOC-4 and MGT-7 clocks
October to December	File ADT-1, AOC-4, MGT-7A and ITR-6; pay the December advance tax instalment; file GSTR-9 where applicable	The busiest quarter; the Rs 100 a day runs here
January to March	Pay the final advance tax instalment by 15 March; plan director remuneration and dividend for the closing year; check that the regime election still fits	Most of the year's tax outcome is fixed before 31 March

One planning point sits inside that calendar and is worth stating plainly: the election under section 115BAA is made in the return, so the decision lands in the October to December window whether or not you were ready for it. Decide before the auditor starts, not after.

PART EIGHT

The twelve costliest mistakes

Each of these has a rupee figure attached. Read the list once before you register, and again before your first year end — the expensive ones are not the ones people worry about.

34. The mistakes, ranked by what they cost

Mistake	What it costs	The fix
Missing INC-20A	Rs 50,000 plus Rs 1,000 a day per officer, and a company that cannot legally trade	File in the week subscription money lands
Three years of unfiled annual returns	Director disqualified for five years; strike-off; five figures of accumulated additional fees	File, even late, before the third year closes
Setting authorised capital at Rs 50 lakh to look substantial	Higher stamp duty at incorporation and a higher fee slab on every future filing	Start at Rs 1 lakh; increase with SH-7 when needed
Choosing a private limited company at Rs 12 lakh profit	Rs 25,000 to Rs 60,000 a year of audit and filing for no benefit	Use an LLP or a proprietorship until the numbers justify it
Assuming an OPC must convert at Rs 2 crore turnover	Unnecessary conversion fees and a premature second shareholder	The mandatory conversion was removed on 1 April 2021
A registered office without an NOC	Resubmission, lost name reservation, non-refundable stamp duty	Attach the NOC and a bill under two months old
Treating the auditor's appointment as informal	ADT-1 default at Rs 100 a day; an audit engagement that is technically irregular	Board resolution, then ADT-1 within 15 days
Taking the 22% regime and then wanting 80-IAC	The holiday is gone, permanently	Decide the regime with the incentive question open
Collecting a GST number you do not need	Twelve returns a year, Rs 50 a day per late return, a cancellation process later	Register when a threshold or a compulsory category applies
Mixing personal and company money	Disallowed expenses, related-party questions, an unclean audit trail	One company account, one set of books, documented director loans
Letting a DSC expire during filing season	A week lost at exactly the wrong time	Renew 30 days early; check the association on the portal
Closing by walking away	Continuing filings, mounting fees, a director disqualification clock	Dormant status, strike-off, or Form 24 for an LLP

35. The three questions that prevent most of them

Almost every mistake above is a scheduling or a sequencing failure rather than a legal one. Three questions, asked at the right moment, catch them.

1. **What did I just receive, and what does it start?** Every certificate and approval starts a clock. The certificate of incorporation starts six.
2. **Which form references which?** ADT-1 before AOC-4, AOC-4 before MGT-7, subscription money before INC-20A, Form 11 before Form 8. Filing out of order produces validation failures and rework.
3. **Who is actually doing this?** "The CA will handle it" is not a date in a calendar. Ask for the filing acknowledgement, every time.

PART NINE

Getting out

A company or LLP that has stopped trading does not stop filing. The exit is a process with its own forms, and choosing the wrong one costs more than the business ever earned.

36. Dormant, struck off, or wound up

Route	What it is for	Key mechanics
Dormant status	A company that intends to resume trading later	Application to the Registrar for dormant status; minimal filings while dormant; reactivation when you restart
Strike-off by the Registrar	A company that has not been carrying on business	Section 248; initiated by the Registrar, not chosen by you; directors remain exposed
Voluntary strike-off	A company with no assets, no liabilities and no pending litigation	Application in Form STK-2 with the required indemnity and statements, after members' consent; the Registrar publishes a notice and dissolves the company
LLP closure	An LLP that has ceased business	Form 24 application for strike-off, after partners' resolution, with a statement of accounts and an indemnity
Winding up	A company with assets, creditors or disputes	Formal liquidation; a professional is mandatory

Before any of these, clear the backlog. An application to strike off a company with unfiled annual returns is refused, and the fees keep running while you prepare. Budget for the overdue filings as part of the exit, not as an alternative to it.

37. What a dead company actually costs per year

This is the number founders never estimate when they incorporate. A private limited company that earned nothing still owes, every year: an audit, AOC-4, MGT-7A, an income-tax return, and the accounting that supports all three. Market rates for that package sit between Rs 15,000 and Rs 40,000, before any GST returns. An LLP in the same position owes Form 11, Form 8 and ITR-5, with no audit below the thresholds — typically Rs 6,000 to Rs 15,000.

Multiply by the years you might keep it alive "just in case" and the incorporation decision looks different. It is the strongest argument in this book for registering late rather than early, and for closing in the year you stop rather than the year you remember.

> **The one-page summary of the whole book**
>
> Register the simplest structure that solves today's problem. Gather the documents before you open the portal. File SPICe+ with Rs 1 lakh authorised capital, a name you checked twice, and a registered office with an NOC. Then treat the 180 days and the annual calendar as the real product you bought, because they are what the penalties attach to. If the business stops, close it in that same year.

PART TEN

Worksheets

Four pages you fill in. They are deliberately plain: a scorecard, a document checklist, a calendar and a fee estimator. Print them, or copy them into a note you will actually open.

38. Structure scorecard

Score each row for the structure you are considering: 2 if it clearly fits, 1 if it partly fits, 0 if it does not. Highest total wins, with one override — if you will raise equity, only the private limited company can.

Question	Proprietorship	LLP	OPC	Private limited
Can I afford Rs 25,000 to Rs 60,000 a year of compliance?				
Do I need protection from business debt or a lawsuit?				
Will I take an investor, or issue ESOPs, in three years?				
Do corporate customers require a CIN to onboard me?				
Will I have two or more co-founders with shares?				
Is my annual profit below about Rs 40 lakh?				
Do I want no audit until Rs 40 lakh turnover?				
Do I need to survive as an entity if I die or leave?				
Total				

39. Document and DSC checklist

Done	Item	For	Note	
	PAN, name matching the PAN database	Each director and subscriber		
	Aadhaar	Each Indian director and subscriber		
	Photograph, clear and recent	Each director and subscriber		
	Address proof, under two months	Each director and subscriber		
	Class 3 DSC, active and associated on the portal	Each director and subscriber		
	Utility bill for the registered office, under two months	The premises		
	No Objection Certificate from the owner	The premises	Even if you own it	
	Rent agreement or ownership proof	The premises		
	Two candidate names, trademark-searched	The company		
	Object clause drafted and matched to a NIC code	The company		
	Authorised and paid-up capital decided	The company	Start at Rs 1 lakh	
	Subscription amounts agreed per subscriber	The company	Needed for INC-20A	
	GST, Udyam, professional tax, S&E; decision recorded	The company		

40. Annual calendar for your first two years

Fill the actual dates from your own certificate and AGM. The middle column is the statutory rule; the right-hand column is the only one that will save you.

Obligation	Statutory rule	Your date, year one	Your date, year two
First board meeting	Within 30 days of incorporation		
Auditor appointed, ADT-1 filed	30 days, then 15 days		
Share certificates issued	Within 60 days		
INC-20A filed	Within 180 days		
Board meetings held	Four, or two for a small company		
AGM held	By 30 September		
ADT-1 after the AGM	Within 15 days of the AGM		
AOC-4 filed	Within 30 days of the AGM		
MGT-7A filed	Within 60 days of the AGM		
ITR-6 filed	31 October, where audit applies		
DIR-3 KYC	30 June, once in three years		

41. Fee estimator and name pre-check

Charge	Enter your figure	Where it comes from
Incorporation filing fee	Nil up to Rs 15,00,000 authorised capital	MCA SPICe+ FAQ
Stamp duty, Part B plus MoA plus AoA		Portal auto-calculation for your state
PAN and TAN	Rs 131	Rs 66 plus Rs 65
Digital signature certificates	Rs 1,000 to Rs 1,500 each	Market rate
Professional certification, if used	Rs 3,000 to Rs 15,000	Market range
Total government side		Everything except DSC and professional fees

Name pre-check, five lines to write down before Part A:

Check	Result
Name is not identical or phonetically close to an existing company or LLP	
Name does not infringe a registered trademark in my classes	
Name does not use a restricted word without approval	
Domain, handle and email available	
Ends in Private Limited, LLP or One Person Company, as applicable	

Twelve questions founders actually ask

Can one person own a private limited company?

Not alone. A private limited company needs at least two directors and two shareholders, and the same person can hold both roles, so you need one other willing person, usually a family member. If you genuinely want to be alone, the OPC exists for exactly this, at the cost of never being able to take an investor.

Do I need a commercial office?

No. A residential address is a valid registered office. What it needs is a utility bill under two months old, an NOC from the owner, and a rent agreement if you rent. A co-working space works too, if the provider gives you the NOC and agreement; confirm they allow registered-office use before you sign.

How long does incorporation actually take?

Seven to fourteen working days in a clean case, counting name approval and document checks. The filing itself is quick; the delays come from the documents.

Can I register the company before I leave my job?

Yes. There is no rule against it, and no conflict unless your employment contract restricts outside business activity. Read that clause first; it is the one that gets enforced.

Do I need GST to raise my first invoice?

Not if you are below the threshold and not in a compulsory category. Registering early means monthly returns from that month, so register when a rule or a customer requires it, and not to look established.

Can a company with no revenue still file returns?

Yes, and it must. Nil AOC-4, nil MGT-7A, a nil return and an audit still apply. This is the most underestimated cost of incorporating early.

What happens if my co-founder leaves?

Their shares do not automatically come back to the company. The articles and any shareholders' agreement decide what happens, which is why both should be drafted before the first investor or the first disagreement.

Is the company's bank balance my money?

No. You can take money out as salary, as a properly declared dividend, as repayment of a documented loan you gave the company, or as expense reimbursement. Anything else is a loan to a director or an unexplained withdrawal, and both get questioned.

Do I have to be a director to own shares?

No. Shareholders own, directors run. A non-resident can hold shares subject to the foreign exchange rules, and at least one director must have been resident in India for 182 days in the previous financial year.

Do I need a chartered accountant?

At incorporation, yes: a practising professional must certify SPICe+. After that, a company needs an auditor every year, while an LLP needs one only above the thresholds.

Can I change the company name later?

Yes, through a special resolution, MGT-14 and INC-24, with a fresh certificate. It is slow enough that the trademark and domain check before filing is worth the hour.

What if I simply stop filing?

Penalties accrue at Rs 100 a day per form with no cap, the directors risk disqualification after three years, and the Registrar can strike the company off. None of that ends the liability; it postpones it at interest.

Your next 30 days

Find the track that describes you and do only that track. Each is written to be finishable in a month alongside a job.

Track A — I have not registered anything

1. Week 1: run the structure scorecard on page 38 with your actual profit number, not your hoped-for one. Write down the answer and stop re-deciding it.
2. Week 1: if the answer is proprietorship, register for Udyam today and check the GST threshold for your activity. That is the whole task.
3. Week 2: if the answer is a company or LLP, run the name checks in section 41 and settle on one name.
4. Week 3: assemble the twelve documents in section 6, including the NOC and a utility bill under two months old.
5. Week 4: order the digital signature certificates. Everything else waits on them.

Track B — I am filing this month

1. Confirm your DSC is registered on the MCA portal and that your user account is a V3 business user.
2. Copy one address string, exactly, into the bill, the NOC, the rent agreement and the form.
3. Set authorised capital at Rs 1 lakh unless you have a specific reason not to, and make the share counts agree across the eMoA, Part B and the subscriber sheet.
4. File Part A, then Part B inside the 20-day window, and pay the stamp duty in the same flow.
5. Diarise day 7, day 30 and day 180 before you close the browser.

Track C — the certificate has arrived

1. Today: verify the name, CIN, PAN, TAN, directors and address against the certificate.

2. This week: open the current account and have each subscriber transfer their exact subscription amount from their own account.
3. Within 30 days: hold the first board meeting, appoint the auditor, file ADT-1, issue share certificates, start the registers.
4. Within 90 days: decide GST, Udyam and professional tax; set up bookkeeping; put the company's name and CIN on the invoice format, letterhead and website.
5. Before day 150: file INC-20A with the bank statement showing the subscription credits. Then put the annual calendar on the wall.

Appendix. Every deadline in one place

Pin this. It is the whole compliance calendar without the explanation, so it is the page to photograph and keep on your phone.

Entity	Obligation	Deadline
Company	First board meeting	30 days from incorporation
Company	First auditor appointed by the board	30 days from incorporation
Company	ADT-1 after that board resolution	15 days
Company	Share certificates issued	60 days from allotment
Company	INC-20A	180 days from incorporation
Company	Board meetings	Four a year, gap of 120 days or less
Company	AGM	By 30 September
Company	ADT-1 after the AGM	15 days from the AGM
Company	AOC-4	30 days from the AGM; 180 days from year end for an OPC
Company	MGT-7 or MGT-7A	60 days from the AGM
Company	MGT-14, for resolutions that require filing	30 days from the resolution
Company	DPT-3, where applicable	30 June
Company	MSME-1, where applicable	30 April and 31 October
Directors	DIR-3 KYC	30 June, once in three financial years
Directors	KYC after a change of mobile, email or address	30 days from the change
Company and LLP	Advance tax instalments	15 June, 15 September, 15 December, 15 March
Company	ITR-6	31 October where audit applies
Company	Tax audit report	30 September
LLP	Form 11, annual return	30 May
LLP	Form 8, statement of account and solvency	30 October
LLP	Form 3 or Form 4, for changes	30 days from the change
LLP	ITR-5	31 July, or 31 October where audit applies
Both	TDS deposit	7th of the following month

Entity	Obligation	Deadline
Both	TDS quarterly return	31 July, 31 October, 31 January, 31 May
Both	GSTR-1 and GSTR-3B	11th and 20th monthly, or the quarterly QRMP dates
Both	GSTR-9, annual return, where applicable	31 December

Glossary

Term	Meaning
AOC-4	Form filing a company's financial statements with the Registrar
ADT-1	Form appointing or reappointing a company's auditor
AGILE-PRO-S	Form INC-35, the linked application for GSTIN, EPFO, ESIC, professional tax and bank account
CIN	Corporate Identification Number, the 21-character company identity
DIN / DPIN	Director Identification Number; DPIN is the LLP equivalent for designated partners
DSC	Digital Signature Certificate, Class 3, on a USB token
eMoA / eAoA	Electronic memorandum and articles, Forms INC-33 and INC-34
FiLLiP	The LLP incorporation form
INC-20A	Declaration of commencement of business, due within 180 days
INC-9	Declaration by subscribers and first directors, generated by SPICe+
MAT	Minimum alternate tax, 14% of book profit from 1 April 2026
MGT-7 / MGT-7A	Annual return; the abridged form is for small companies and OPCs
NIC code	National Industrial Classification code describing the business activity
SPICe+	The integrated MCA incorporation form, Part A and Part B
Udyam	The free MSME registration that replaced UAM

Sources

Every fee, form, deadline and penalty in this playbook was checked in November 2026 against the following official sources. Where a figure is a market range rather than a statutory amount, it is labelled as one in the text.

- Ministry of Corporate Affairs, SPICe+ and linked filings FAQs, including the zero filing fee concession and the eleven blocks of Part B.
- Ministry of Corporate Affairs, INC-20A form and instruction kit, and the published schedule of penalties and offences under the Companies Act, 2013.
- Ministry of Corporate Affairs, One Person Company FAQs, and the Companies (Incorporation) Second Amendment Rules, 2021.
- Ministry of Corporate Affairs, state-wise stamp duty schedule for SPICe+ Part B.
- Press Information Bureau, 1 January 2026, on the three-year director KYC under Rule 12A, and Gazette notification G.S.R. 943(E) dated 31 December 2025.
- MCA General Circular 05/2026 dated 24 October 2026 on FY 2025-26 annual filing fees.
- MCA notification G.S.R. 880(E) dated 1 December 2025 on the revised small company thresholds.
- Income Tax Department, corporate tax rates and return guidance for assessment year 2026-27, and the profession taxation of start-ups page.

- Startup India, recognition criteria and the tax and benefits playbooks of 2026; PIB release of 27 October 2026 on DPIIT-recognised startups.
- GST Council and CBIC material on registration thresholds, compulsory registration and the composition scheme.
- Limited Liability Partnership Act, 2008 as amended in 2021, and the LLP Rules on annual filings and additional fees.

A closing note

The rules in this book are current as of November 2026 and they will change. Fees are revised, thresholds move, and forms get replaced — the director KYC changed twice in five years and the small-company limits doubled in December 2025. Before you file anything, spend five minutes on mca.gov.in confirming the form and the fee for your own case. That habit, more than any single fact in these pages, is what keeps a small company out of trouble.

Where to check, quickly

Incorporation, forms and fees: mca.gov.in
Director KYC and company master data: MCA Services on the same portal
Startup recognition: nsws.gov.in
GST registration and returns: gst.gov.in
MSME registration: udyamregistration.gov.in
Corporate tax and return forms: incometax.gov.in